

1.

CASE #	CASE NAME	HEARING NAME
CVMV2510814	CHILES vs AFRICAN AMERICAN HEALTH COALITION	MOTION TO VACATE VOID ORDER AND CLERICAL ERROR

Tentative Ruling: The Court DENIES the Motion to Vacate.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2501128	CARRE vs COUNTY OF RIVERSIDE	MOTION FOR SUMMARY JUDGMENT

Tentative Ruling: The Court **GRANTS** Defendant County's motion for summary judgment; trail immunity applies and Plaintiff fails to meet his burden to present a triable issue of material fact. Governmental immunity from liability is jurisdictional rather than an affirmative defense (*Richardson-Tunnel v. School Ins. Program for Employees* (2007) 157 Cal.App.4th 1056, 1061); as such, the Court does not reach the merits of whether there existed an open-and-obvious dangerous condition.

County's Evidentiary Objections

County objects to various portions of the declarations of Narine Sulahian ("Sulahian") and Plaintiff. County objects to the entirety of the declaration of Tate Kubose, Ph.D. ("Kubose"). The Court rules as follows:

- Sulahian's Declaration: objection #1 - overruled.
- Plaintiff Declaration: objection #1-2 (subsequent remedial measure, relevance) and #3 (speculation) - sustained. Objection #4 - overruled.
- Kubose's Declaration. Plaintiff offers Kubose's declaration as expert testimony. (Evid. Code, §§ 720, 802 see *Kelly v. Trunk* (1998) 66 Cal.App.4th 519, 524; *Towns v. Davidson* (2007) 147 Cal.App.4th 461, 472.) Courts will exclude expert opinions based on invalid assumptions, such as on facts without evidentiary support. (*Sanchez v. Kern Emergency Med. Transp. Corp.* (2017) 8 Cal.App.5th 146, 155.) Here, Kubose's declaration provides his credentials, lists the records he reviewed, and then provides conclusions without the bases for such. (See Kubose Decl., ¶6.) As such, the Court SUSTAINS County's objections #1-7

Analysis

Plaintiff alleges he was injured because of a dangerous condition on public property owned, controlled and maintained by County.

A public entity is generally liable for an injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury and the public entity had actual or constructive notice of the dangerous condition. (Gov. Code, §§ 835, 835.2; *Metcalf v. County of San Joaquin* (2008) 42 Cal.4th 1121, 1126.)

a. Recreational Trail Immunity

County asserts the Incident Location, a paved trail, is a recreational trail such that County is immune from liability pursuant to the recreational trail immunity under Government Code section 831.4.

Government entities are shielded from liability for injury caused by the condition of any recreational trail or unpaved access road to scenic or recreational areas. This immunity overrides any liability arising from a “dangerous condition” on such trails or roads. (Gov. Code, § 831.4; *Montenegro v. City of Bradbury* (2013) 215 Cal.App.4th 924, 929-931 (“*Montenegro*”); *Reed v. City of Los Angeles* (2020) 45 Cal.App.5th 979, 981-984; *Arvizu v. City of Pasadena* (2018) 21 Cal.App.5th 760, 766-769; see *Hartt v. County of Los Angeles* (2011) 197 Cal.App.4th 1391, 1400 [dual use of park trail for recreational purposes and to provide maintenance access to various park locations did not circumvent immunity where bicyclist killed in collision with maintenance truck]; compare *Toeppe v. City of San Diego* (2017) 13 Cal.App.5th 921, 931 [“This is not a case about trails. It is about trees.”]; *Garcia v. American Golf Corp.* (2017) 11 Cal.App.5th 532, 543-547 [private golf course next to a public street].)

“The plainly stated purpose of immunity for recreational activities on public land is to encourage public entities to open their property for public recreational use, because ‘the burden and expense of putting such property in a safe condition and the expense of defending claims for injuries would probably cause many public entities to close such areas to public use.’” (*Armenio v. County of San Mateo* (1994) 28 Cal.App.4th 413, 417.) Governmental immunity from liability is not an affirmative defense but is jurisdictional. (*Richardson-Tunnell v. School Ins. Program for Employees* (2007) 157 Cal.App.4th 1056, 1061.)

Government Code section 831.4 provides:

A public entity public employee, or a grantor of a public easement to a public entity for any of the following purposes, is not liable for an injury caused by a condition of:

- (a) Any unpaved road which provides access to fishing, hunting, camping,

hiking, riding, including animal and all types of vehicular riding, water sports, recreational or scenic areas and which is not a (1) city street or highway or (2) county, state or federal highway or (3) public street or highway of a joint highway district, boulevard district, bridge and highway district or similar district formed for the improvement or building of public streets or highways.

(b) Any trail used for the above purposes

(c) Any paved trail, walkway, path, or sidewalk on an easement of way which has been granted to a public entity, which easement provides access to any unimproved property, so long as such public entity shall reasonably attempt to provide adequate warnings of the existence of any condition of the paved trail, walkway, path, or sidewalk which constitutes a hazard to health or safety. Warnings required by this subdivision shall only be required where pathways are paved, and such requirement shall not be construed to be a standard of care for any unpaved pathways or roads.

Trail immunity is not limited to natural or unimproved land. (*Montenegro, supra*, 215 Cal.App.4th at 929-931.) A paved walkway through a dog park qualified as a “recreational trail.” (*Amberger-Warren v. City of Piedmont* (2006) 143 Cal.App.4th 1074, 1078-1083.) Similarly, a winding, natural stone stairway built into a hill and leading to a campground qualified as a “recreational trail.” (*Lee v. Department of Parks & Recreation* (2019) 38 Cal.App.5th 206, 210-215.) A concrete pathway leading to restroom in park qualified as “recreational trail” because pathway, restroom and adjacent campground were all integrally related and used for recreational purposes. (*Loeb, supra*, 43 Cal.App.5th at 432-437.) A paved bike path likewise qualified as a “recreational trail.” (*Farnham v. City of Los Angeles* (1998) 68 Cal.App.4th 1097, 1100-1103; see *Burgueno v. Regents of Univ. of Calif.* (2015) 243 Cal.App.4th 1052, 1058-1061 – immunity applied to paved bike path used for recreation notwithstanding its primary use of allowing bicycle transportation through university campus separate from automobile traffic.)

“Whether a property is considered a ‘trail’ under section 831.4 turns on ‘a number of considerations,’ including (1) the accepted definitions of the property, (2) the purpose for which the property is designed and used, and (3) the purpose of the immunity statute.” (*Lee, supra*, 38 Cal.App.5th at 211, quoting *Amberger-Warren, supra*, 143 Cal.App.4th at 1078-1079, 1077, [extending trail immunity to “a paved pathway in an urban park setting”].) Although this “is ordinarily viewed as an issue of fact [citation], it becomes one of law if only one conclusion is possible.” (*Montenegro, supra*, 215 Cal.App.4th at 929.)

In the present case, it is undisputed that the location of Plaintiff’s fall occurred along the Santa Ana River Trail located in Hidden Valley Wildlife Area Park. (Undisputed Fact (“UF”) #2.) The following are also undisputed: The Santa Ana River Trail is owned, operated, and maintained by the County. (UF #18.) The Santa Ana River Trail is a **recreational trail open and available to the public** and runs through Hidden

Valley Wildlife Area. (UF #19, emphasis added.) It is set on 1,500 scenic acres and has access to 25 miles of hiking and equestrian trails. (UF #21.) Bicyclists also can ride along the 8-mile stretch on the Santa Ana River Trail that links the San Bernardino Mountains to the Pacific Ocean. (*Ibid.*)

Based on the foregoing, because the location of Plaintiff's fall occurred on a recreational trail within the meaning of Government Code section 831.4, County satisfied its initial burden under Code of Civil Procedure section 437c, subdivision (b)(3). The burden shifts to Plaintiff.

Plaintiff argues County created too many obstacles on the trail, unrelated to the design of the trail, that caused Plaintiff's accident.

Plaintiff relies on *Toeppe, supra*, 13 Cal.App.5th 921 and *Treweek v. City of Napa* (200) 85 Cal.App.4th 221 to argue trail immunity is inapplicable when conditions unrelated to the design of the trail or inherent to the nature of the trail are present. *Toeppe* is distinguishable. In *Toeppe*, the court found immunity did not apply because the plaintiff was 25 feet away from the paved trail when a tree branch hit her such that the dangerous condition was independent of the trail. (*Toeppe, supra*, 13 Cal.App.5th at 928.) Likewise, the court in *Treweek, supra*, 85 Cal.App.4th at 231-232 found immunity did not apply because a boat ramp is not a trail within the meaning of the trail immunity statute because it is not an integral part of a recreational trail. In contrast, here, the hose was not independent of the recreation trail because it was on the recreational bike path, a fact that Plaintiff does not dispute. (UF #3, 6-7.)

Plaintiff provides photographs he took of the exact location where he was injured. (Sulahian Decl., Exh. 1 (1-4); Plaintiff Decl., ¶18.) The photographs depict the trail has one lane of travel for each direction of traffic. (Sulahian Decl., Exh. 1 [1-2, 4-9, 11, 14].) A large John Deere Gator Utility vehicle was parked in the westbound lane of travel with a long hose running from the John Deere on the line dividing the road, and it loops across the eastbound lane of travel. (Plaintiff Decl., ¶6; Sulahian Decl., Exh. 1 [1-4, 10-11].) The hose is not 25 feet away like the dangerous condition in *Toeppe*, nor is it a boat ramp like the dangerous condition in *Treweek*.

In *Nealy v. County of Orange* (2020) 54 Cal.App.5th 594, 597-599, a bicyclist was injured by riding directly into wire cables on a loop trail located inside of a county owned public park used for hiking and bicycling. The bicyclist did not dispute that the trail is a "trail" under Government Code section 831.4 and did not focus on the meaning of trail. (*Id.* at 603.) The Court of Appeal found the wire cables were a part of the trail itself because the wire cables ran perpendicular to and parallel to the trail making it "inherently connected to" and existed "only because of its connection with the trail". (*Id.* at 605.) Thus, trail immunity applied. (*Ibid.*)

In *Amberger-Warren, supra*, 143 Cal.App.4th 1074, the plaintiff was in the off-leash area of a city-owned dog park when she was bumped by her unleashed dog, slipped on debris on the pathway, fell backwards landing partly way off the pathway, and

injured her hand during the fall when she grabbed an exposed cement edge. (*Id.* at 1077-1078.) The plaintiff argued trail immunity did not apply because her injury was not caused by a condition of the trail and that defendant created the dangerous condition by allowing dogs to run unleashed in the park. (*Id.* at 1083.) The court rejected this argument held the path was used for the recreational purpose of bringing a dog to an unleashed area of a dog park. (*Id.* at 1079.) The court held further: **“It is well-established that the immunity covers negligent maintenance of a trail, such as allowing accumulation of debris as alleged here.”** (*Id.* at 1084.)

Here, the hose was positioned to lay flat on and followed the yellow divider line on the road. (See Sulahian Decl., Exh. 1.) Applying *Nealy* and *Amberger-Warren*, the hose was an integral part of the trail and allowing the hose to lay flat on and following the yellow divider line is covered by recreational immunity.

The evidence presented does not support Plaintiff’s arguments to rebut County’s evidence. Plaintiff fails to meet his burden in presenting a triable issue of material fact. (See Code Civ. Proc., § 437c, subd. (b)(3).) Trail immunity applies. Because governmental immunity is jurisdictional, not an affirmative defense (*Richardson-Tunnell, supra*, 157 Cal.App.4th at 1061), the Court need not reach the merits of whether the hose was open and obvious. The Court **GRANTS** Defendant County’s motion for summary judgment.

Prevailing party shall submit proposed judgment within fourteen (14) days of this Order. The Court vacates all currently set hearing dates and schedules an OSC re receipt of judgment for September 11, 2026, at 8:30 a.m.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2600859	LETTS vs TESLA, INC.	MOTION TO COMPEL ARBITRATION

Tentative Ruling: The Court **GRANTS** Defendant Tesla’s Motion to Compel Arbitration. The Court stays the matter and vacates all currently set future hearing dates. Status conference re arbitration scheduled for July 27, 2027, at 8:30 a.m.

Defendant, Tesla, brings this motion to compel arbitration pursuant to Plaintiff’s arbitration agreement (AA) with Tesla, and to stay the civil action pending arbitration. (Federal Arbitration Act (FAA) 9 USC §§ 1-16; CCP § 1281, *et. seq.*) Tesla asked Plaintiff to stipulate to arbitration pursuant to the AA; Plaintiff declined. Tesla asserts that the AA is valid, enforceable, and that Plaintiff’s claims fall squarely within its scope.

Plaintiff opposes the motion arguing that Tesla has shown it has an online clickwrap interface process to *order* a vehicle but, not that Plaintiff’s placement of her order unambiguously manifested assent to that agreement or to an arbitration agreement; while Tesla argues Plaintiff’s claims fall within the AA, it has not proven the